

PLA 1104 Assignment #3

Professor Alexandria Rankin

PART ONE Case Law. Use **Lexis+** to answer the following (**do not Google the question**): (Questions 1-10 worth 3 pts each).

1. Was the applicant denied due process? 57 F. Supp. 2d 1305 (1999)
No, the court held that the applicant was not denied due process because he did not have a protected property interest in the license.
2. Whose duty is it to engage in prosecutorial discretion? 127 N.M. 566, 985 P.2d 168 (1999)
It is the duty of the prosecutor to exercise prosecutorial discretion.
3. Under Minnesota law, how should contractual provisions be interpreted? 186 F.3d 981 (1999)
Under Minnesota law, contractual provisions are interpreted to determine the intent of the parties, and if the contract is ambiguous, the court may consider extrinsic evidence.
4. What does a plaintiff have to demonstrate to get a preliminary injunction? 673 N.Y.S.2d 450, 242 A.D.2d 52 (1998)
A plaintiff must demonstrate a likelihood of success on the merits, irreparable harm if the injunction is not granted, and that the balance of equities favors the plaintiff.
5. What is the precise and universal test of relevancy? 48 Conn. App. 717, 711 A.2d 769 (1998)
The test of relevancy is whether the evidence tends to establish the existence of a material fact or make it more or less probable.
6. When should the *per se* rule be applied? 143 F.3d 914 (1998)
The *per se* rule should be applied only when the attorney was never properly licensed to practice law.

For the following questions, use the lefthand toolbars on Lexis+ to help ensure you have found the correct case based on the citation information provided (i.e. limit your search by the year of decision and by the Court – use BT2.1 and Table 1 in the Bluebook to help determine which court the case is from based on the abbreviation provided).

7. What is the four-part test for determining whether injunctive relief should be granted? *Doe v. Fauver* (D.N.J. 1997)
The four-part test is likelihood of success on the merits, irreparable harm, balance of hardships, and the public interest.
8. What impact do “fighting words” have? *Lundgren v. State* (Ga. Ct. App. 1999)
“Fighting words” are words that tend to provoke an immediate breach of the peace or violence and are therefore not protected speech.
9. If it looks like a criminal defendant might be insane, who in Massachusetts bears the burden

of disproving that? *Commonwealth v. Federici* (Mass. 1998)

The Commonwealth (prosecution) bears the burden of disproving insanity beyond a reasonable doubt.

10. What does this Michigan court think about expert testimony regarding the credibility of a witness? *Franzel v. Kerr Manufacturing Company* (Mich. App. 1999)

The court held that expert testimony regarding the credibility of a witness is improper because determining credibility is the role of the jury.

For Questions 11 and 12, use your own words to answer the questions (summarize). Do not copy and paste from Lexis+ - build your citations using Bluebook Rule 10.

11. Retrieve case 468 U.S. 705 (1984) and answer the questions below: (5 pts)

a. What is the name of this case?

United States v. Karo

b. Who argued this case for the United States?

The case was argued for the United States by Andrew L. Frey.

c. Which justice wrote the majority opinion of the Court?

Justice Byron White wrote the majority opinion.

d. Did any justice(s) concur or dissent? If so, who concurred and who dissented (include justices who “joined” in a concurrence or dissent)?

Justice O’Connor concurred, joined by Justice Rehnquist. Justice Stevens concurred in part and dissented in part, joined by Justice Brennan and Justice Marshall.

e. What is the Shepard’s status of this case?

The Shepard’s status indicates that the case has been questioned.

12. Retrieve the U.S. Supreme Court case *Katz v. United States* and answer the following questions: (5 pts)

a. What is the full citation to this case (see Rule 10 in the Bluebook)?

Katz v. United States, 389 U.S. 347 (1967).

b. What are the key facts of this case?

Katz used a public telephone booth to transmit wagering information, and the FBI recorded his conversations without a warrant.

c. What is the issue in this case (i.e. what question is the Court tasked with answering)?

The issue was whether recording Katz’s phone conversations without a warrant violated the Fourth Amendment.

d. What was the disposition of this case (i.e. what was the holding of the Court)?

The Court held that Katz had a reasonable expectation of privacy and that the warrantless surveillance violated the Fourth Amendment.

e. What is the Shepard’s status of this case?

The Shepard's status indicates a warning, meaning the case has received some negative treatment.

PART TWO Case Brief. (60 points) **Assigned Case:** SFFA v. Harvard/UNC, 600 U.S. 181 (2023).

A brief generally needs to be 1 - 2 pages in length: Times New Roman, single-spaced, 12-point font. Your assignment must be submitted to a tutor! Do not use the Lexis+ generated case brief!

Case Title and Citation: The title of the case shows who is opposing whom. The citation tells you how to locate the case in the appropriate case reporter. (2.5 pts)

Facts: Summarize the facts of the case. List only the key facts that you need to understand the holding and reasoning of the case. (5 pts)

Cause(s) of Action: What is the reason why the plaintiff sued the defendant, in legal terms? (2.5 pts)

Procedure: List what happened in the “lower court(s).” Do not go into too much detail. Just list how the lower court held (i.e. what was the outcome at the lower court level before it was appealed). If it is a case of first impression in the lowest court of the state or federal system, then you may not have any procedure as this is the first time a court is hearing the case. (2.5 pts)

Issue(s): What is/are the question(s) facing the court? Write the issue questions in a way that they can be answered by **yes** or **no**. (7.5 pts)

Holding: How did the court answer the issue question(s)? Answer *directly*. (7.5 pts)

Reasoning: This is the most important section of your case brief. Here you want to list the reasoning of the majority in reaching its decision. You can be quite detailed in this section while keeping in mind this is to be a short-form version of the important points of the decision. List what the law was before this case was decided and how the law has possibly changed or remained consistent after this decision. Make sure you identify the law that the court considers in making its decision. (15 pts)

Disposition: The ultimate finding of the court. Did the court rule in favor of the plaintiff or the defendant? If the case was an appeal from a lower court decision, was the case affirmed, quashed, reversed, remanded? (2.5 pts)

Concurring/dissenting opinions: The jurists in agreement might have reached the same conclusion as the majority in a concurring opinion but based on different reasoning. In a dissenting opinion, the opposing jurists usually have remarks that state why they disagree with the holding. (5 pts)

Submission to Tutor: Prior to submission, you must either meet with an SPC tutor or submit your paper to Brainfuse. If you are meeting with a live tutor, please include confirmation of attendance at your tutoring session. If you are using Brainfuse, please submit a screenshot of the submission confirmation screen. (10 pts)

PLA 1104 Legal Research
Case Brief - SFFA v. Harvard/UNC

Citation: Students for Fair Admissions, Inc. v. President & Fellows of Harvard College, 600 U.S. 181 (2023).

Facts: Students for Fair Admissions challenged Harvard and UNC's admissions processes, which considered race as a factor in evaluating applicants. Harvard used race in scoring and final decisions, while UNC allowed race to provide a benefit to certain applicants. The plaintiff argued these policies discriminated against other applicants.

Cause(s) of Action: Students for Fair Admissions challenged the constitutionality of race-based college admissions under the Equal Protection Clause and Title VI.

Procedure: Lower courts upheld the admissions programs. The cases were appealed, and the United States Supreme Court granted certiorari.

Issue(s): Does the use of race in college admissions violate the Equal Protection Clause and Title VI?

Holding: Yes. The use of race in the admissions programs violates the Equal Protection Clause and Title VI.

Reasoning: The Court applied strict scrutiny, requiring a compelling governmental interest and narrow tailoring. While the universities argued that diversity was a compelling interest, the Court found their goals were not sufficiently measurable for judicial review. The Court also determined that the admissions programs used race in a negative manner, relied on racial stereotypes, and lacked a clear end point. Because of this, the programs were not narrowly tailored. The Court emphasized that the Equal Protection Clause requires individuals to be treated as individuals rather than based on race, and that racial classifications are inherently suspect.

Disposition: The Court reversed the lower court decisions.

Dissent: The dissenting justices argued that diversity is a compelling interest and that the majority's decision limits the ability of universities to address inequality in education.



Submission Details

!Assignment Task

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Additional Information

Please select up to 2 areas from the list below where you would like the writing tutor to focus his/her analysis.

Sentence Structure
Grammar, Punctuation, and Mechanics

I confirm that the paper submitted is my own work and is not the work of another individual. I also confirm that the paper submitted was not generated by AI. I acknowledge that submitting work that is not my own is against the college's academic integrity policy.

Yes

Please specify citation format requirements

Bluebook

Writing Lab Type